

Jawahar Lal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 March 2021 · WRIT - C No. - 6052 of 2021 · **Writ disposed of; petitioner relegated to Section 127 appeal.**

HEADNOTE

Where a final assessment under Section 126 of the Electricity Act, 2003 has already been issued, a writ seeking a further opportunity to contest that assessment before the assessing officer is not entertained. The consumer has an alternative remedy of appeal under Section 127 of the Act read with Clause 6.8(d) of the U.P. Electricity Supply Code, 2005. The writ was disposed of with liberty to file that appeal.

FACTUAL SUMMARY

Jawahar Lal challenged a Section 126 assessment before the Allahabad High Court. The licensee's written instructions showed a provisional assessment notice dated 12 September 2019 and a final assessment notice dated 4 November 2019, both sent by registered post. His objection dated 30 September 2020, asserting there were no dues, was filed well after the final notice and was rejected on 24 February 2021. Counsel then sought one further opportunity to contest the final assessment before the assessing officer.

HOLDING-UNITS

INTERPLAY · EA2003::127

statutory appeal against final s.126 assessment

HOLDING

A consumer who seeks a further opportunity to contest a final assessment under Section 126 before the assessing officer has an alternative remedy of appeal under Section 127 of the Electricity Act, 2003 read with Clause 6.8(d) of the U.P. Electricity Supply Code, 2005; the writ is disposed of with liberty to pursue that appeal. ¶ 1

PRINCIPLE TAGS

alternative-remedy-s127-appeal-bars-writ-against-s126-assessment

The writ seeking a further hearing against a final Section 126 assessment was disposed of because the statutory Section 127 appeal, read with Clause 6.8(d), was available. ¶ 1

final-assessment-order-relegates-assessee-to-section-127-appeal

A final assessment notice having been issued on 04.11.2019 and the later objection rejected, the consumer was left to the Section 127 appeal rather than a further representation to the assessing officer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND QUANTUM OF THE SECTION 126 FINAL ASSESSMENT

Merits of the assessment, the delayed 30.09.2020 objection, and the request for a further hearing before the assessing officer were not examined; the petitioner was relegated to the statutory appeal. ¶ 1